Hollowell Patent Group PLLC

www.hollowellpatent.com

May 3, 2019

Gary Smith
General Manager
Odonnell Inc

Re: Engagement for a Patent Portfolio Review

Dear Mr. Smith:

You have asked us to review the patents and patent applications held by Odonnell Inc and to tell you, family by family, which of them justify the cost of keeping them in force and which do not. This letter confirms that engagement and records its scope, the people who will carry it out, its start date and fee, and the terms on which we will act for you, and it becomes our agreement when you sign and return the signature page.

The Review

We will review the issued United States patents and pending United States applications that the company owns, together with their foreign counterparts, and we will organize the work by patent family so that related filings are assessed together. For each family we will report its legal status, its remaining term and the maintenance fees or annuities that will fall due over that term, the state of the recorded chain of title, and how its claims, as issued or as pending, relate to the products the company sells or intends to sell.

The review ends in a written report, marked privileged, that makes a recommendation for each family: maintain it as it stands, seek further protection through a continuation or another filing, or allow it to lapse at its next payment date. Each recommendation will state the information on which it rests and the facts that would change it.

What the Review Does Not Cover

The review is not an opinion that any patent is valid or enforceable, and it is not an opinion on whether any product, the company's or a competitor's, infringes any patent; each of those is a separate opinion that requires its own investigation and its own engagement letter. Preparing new applications, responding to office actions, and representing the company in any dispute are also outside this engagement, although the report will say where the review suggests that one of those steps deserves your attention.

Order of Work

We will begin by reconciling the company's docket against the records of the United States Patent and Trademark Office and the relevant foreign offices, because every later conclusion depends on knowing which matters are alive and which dates are open. We will then take the families in order of their nearest payment or response deadline, and anything we find that cannot wait for the final report will be brought to you in writing as soon as we find it.

To do this we will need the company's own docket records, its file copies for each family, the assignment and employment agreements signed by the named inventors, and a current description of its products and product plans. We will ask for all of it in a single written request in the first week of the engagement, so that you are not answering piecemeal.

Who Will Do the Work

Heather Munoz, a Partner in our prosecution group, will supervise the review and sign the final report, and every legal conclusion in that report will be hers. Kelly Snyder, a registered Patent Agent, will review the prosecution histories day to day and will be your usual point of contact, and Amanda Schwartz, an Associate, will examine the chain of title for each family and map the claims against the product information you provide.

I remain responsible for the firm's relationship with the company, and you should call me directly if anything about the engagement itself, as distinct from the substance of the work, is not as you expect.

Conflicts of Interest

Before sending this letter we searched our records for any representation adverse to Odonnell Inc and found none. If a conflict comes to light during the review, we will tell you in writing at once and will not proceed on the affected matter until it is resolved.

Start Date and Fee

Work under this letter will begin on May 13, 2019, provided we have received the signed signature page by then, and we expect the review to take about seven months from that date. The review is undertaken for a fixed professional fee covering the scope described above, and that fee is set out on the signature page that accompanies this letter.

Official fees charged by the patent offices, the charges of foreign associates, and similar costs are not part of the fixed fee. We will bill them at cost and will ask before incurring any that are not routine.

Fees and Payment

We will invoice the fixed fee in monthly installments over the expected term of the review, and costs in the month in which they are incurred, and each invoice is payable within thirty days of its date. If an invoice remains unpaid sixty days after its date, we may suspend work on written notice to you, and if it remains unpaid thirty days after that notice we may withdraw from the engagement, subject to our obligations under the rules of professional conduct.

Suspension or withdrawal will never be the means by which a deadline goes unattended. Before we stop work for nonpayment, we will send you a written list of every open deadline in the portfolio that is known to us, in enough time for you to make other arrangements.

Term and Termination

This engagement runs from the start date until we have delivered the final report and answered your questions on it, and it then ends without further notice unless we have agreed in writing to continue. Either of us may end it earlier by written notice, in which case the company will owe the portion of the fixed fee that corresponds to the work completed by the date of the notice, together with any costs already incurred.

Reviewing the company's docket does not make us responsible for maintaining it. Whether during the review or after it ends, we will monitor deadlines, pay maintenance fees or annuities, or take any action before a patent office only on your written instruction for the matter concerned.

Confidentiality

We will hold in confidence everything the company gives us in the course of this engagement and will use it only for the review. Our communications with you and the report itself are intended to be protected by the attorney-client privilege, and to preserve that protection we ask that you limit their circulation to the people within the company who need them and that you speak to us before sharing them with anyone outside it.

Limitation of Liability

Our recommendations will be professional judgments based on the public records and on the information the company provides, and we cannot guarantee how any patent office, court, or competitor will act on any matter in the portfolio. We are not responsible for consequences that follow from information that was withheld from us or was inaccurate when given, or from decisions the company makes against our written advice.

Nothing in this letter limits our liability to the company for our own professional negligence. The rules of professional conduct do not permit a lawyer to limit that liability in advance unless the client has separate counsel advising it on the point, and we have not asked you to do so.

Governing Law

This letter is governed by the law of the state in which this firm maintains its principal office, without regard to that state's rules on conflicts of law. Together with its signature page it is the entire agreement between us on this review, it replaces our earlier discussions on the subject, and it may be changed only in a writing signed by both of us.

If these terms are acceptable, please sign the signature page and return it to me, and Kelly Snyder will send the document request in the week the work begins.

Very truly yours,

Fixed professional fee, as executed: $120,000

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Mary Bradley
Managing Partner
Date: May 3, 2019

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Gary Smith
General Manager, Odonnell Inc
Date: May 3, 2019